

I Samaritanism and the Duty to Obey the Law

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1 Why I Am Not an Anarchist

I don't have many vivid memories from childhood, but among those that stand out, I distinctly remember sitting at a stoplight and seeing a bumper sticker that proclaimed "Taxation is slavery!" This sticker made a great impression on me because I found it so bewildering; I could not fathom why anyone would compare *taxation* – a natural and appropriate part of our lives – to *slavery* – a horribly unjust institution. Indeed, at the time (I think I was about ten), I positively *looked forward* to the day when I would pay taxes. This may sound farfetched, but I was in awe of all that the state accomplished. In particular, I used to sit in the car and marvel at the incredible network of roads; I remember being amazed that people were able collectively to build such an extensive system of streets by merely pooling a portion of their individual incomes. Thus, I looked forward to paying my taxes principally because I wanted to share in the credit for what I considered a monumental communal achievement.

Probably because I thought it was too outlandish to be explained, I did not ask my father why anyone would compare taxation to slavery. As a consequence, it was not until many years later that I finally understood the point of the bumper sticker.¹ Taxation and slavery are alike insofar as both involve others nonconsensually taking at least a portion of the fruits of one's labor. Just

1 The "light bulb" moment occurred for me the summer after my first year of graduate school when I had the good fortune to hear a series of lectures by the extremely compelling anarcho-libertarian Randy Barnett.

as a slave owner essentially puts a gun to the heads of her slaves and forces them to work, the state essentially puts a gun to the heads of its constituents and demands that they hand over some of their wealth. Indeed, not only does the state coerce its constituents, it forcibly helps itself to a portion of their money in order to finance its continued coercion. Thus, if a government takes a third of one's income, for instance, then there is a very real sense in which the state appears morally tantamount to a slave owner who enslaves her slaves for only a third of their working lives.²

Although it might initially seem ludicrous to compare citizenship to slavery, upon closer inspection it proves surprisingly difficult to show why this comparison is inapt. One might protest that citizenship is importantly distinct from slavery insofar as the former is consensual, but the truth is that widespread political consent is a fiction.³ Governments could not function effectively without uniformly coercing virtually everyone within their territorial boundaries; therefore, states cannot afford the luxury of imposing themselves upon only those who have (or would have) consented. One might suggest that political coercion is legitimate because it produces benefits (and, more importantly, produces benefits for the citizens), but the institution of slavery also produces benefits (and, insofar as slave owners provide food, shelter, and clothing for their slaves, slavery also benefits the slaves themselves). Moreover, one cannot object to slavery on the grounds that it does not provide a *net* benefit to slaves for two reasons. First, it is implausible to suppose that absolutely everyone is better off because of the state's presence (think, for instance, of the rugged individualist who would prefer to take her chances in the state of nature), and thus one could not justify the state's coercion in terms of the net benefits to all those

2 Perhaps the most celebrated comparison between political coercion and slavery is Robert Nozick's "Tale of the Slave" in *Anarchy, State, and Utopia* (New York: Basic Books, 1974), 290–2.

3 See A. John Simmons, *Moral Principles and Political Obligation* (Princeton, NJ: Princeton University Press, 1979), especially Chapters III and IV on the absence of consent.

coerced. Second, even if everyone benefited from political coercion, it would be objectionably paternalistic to suppose that this alone justifies the state's imposition because each of us has a right to choose whether and precisely how we would like to be benefited. (An investment company could not justify taking control of my life savings without my permission merely on the grounds that its money management would benefit me, for instance.) Finally, it will not suffice to point out that political subjects are generally *happy* to be citizens or that compatriots typically *identify with* one another because not all citizens are happy to be coerced or identify with their compatriots. What is more, even if all citizens were either happy to be coerced or identified with one another, it is not clear why this would justify the coercion; certainly slavery would not be justified even if one's slaves were happy with the arrangement or identified with one another.

Thus, when one pauses to look closely at the comparison between slavery and political imposition, one sees that it is surprisingly difficult to distinguish between the two. The key shared element is *nonconsensual coercion*. This feature that makes slavery impermissible is also utilized by all governments and thus places the burden upon any of us who are reluctant to label all political states unjust. Thus, the analogy between slavery and political coercion appears not only apt, it is helpful insofar as it motivates the central and most important question of political theory: Why not be an anarchist?

A Defense of Statism

I am not an anarchist because I believe political states provide vitally important benefits that could not be secured in their absence, and they supply these benefits without requiring their subjects to make unreasonable sacrifices. This defense of statism openly depends upon the truth of three claims: (1) political states supply crucial benefits, (2) these benefits would be unavailable in the absence of political states, and (3) states can render their services without imposing unreasonable costs upon those they

coerce.⁴ Let me quickly explain why I think each of these premises is plausible.

Perhaps the best way to get a sense of the benefits of political society is to imagine what life would be like if your state were to go completely out of existence. Unless one lives in a very close-knit, face-to-face community where everyone knows each other and is invested in the group as a whole (which almost none of us does), it seems unrealistic to think that life without a political state would be anything but a horribly chaotic and perilous environment where one would lack the security necessary to pursue meaningful projects and relationships. In other words, for the vast majority of us, it would be virtually impossible to live a rewarding life.

Let me stress that in positing this gloomy picture, I do not mean to suggest that all humans would be revealed to be inherently evil; rather, I believe that even well-meaning, rational people would end up in a horrible environment if there were no state. I think that unless the state is present to establish, enforce, and adjudicate a clear and uniform set of rules that everyone must follow, trouble would ensue. The problem is not that everyone would seek to violate the moral rights of others simply because they knew that they were unlikely to be punished (though some undoubtedly would); it is that conflicts would inevitably arise even among morally good people who genuinely prefer a stable and just peace.

Consider briefly just three things that social contract theorists have traditionally cited as unavoidable sources of chaos. First, in the absence of a state there would be no definitive body to establish a salient set of rules; as a consequence, conflicts would abound even among well-meaning people who sincerely disagree over what justice requires. The point here is that, even if one supposes that moral rights exist and are often generally recognizable and recognized by the vast majority of us, devils lurk in the details. Consider, for instance, property rights. Let us

4 I understand "statism" to be merely the denial of anarchism. Thus, all statisticians believe that political states *can* be justified, and many believe that (at least some) existing states *are* in fact legitimate. The defense of statism I offer here draws upon ideas I introduced in "Liberalism, Samaritanism and Political Legitimacy," *Philosophy & Public Affairs* 25 (1996): 211–37.

assume that everyone agrees that each of us is morally entitled to the fruits of her labor. Even if we all agreed to this general directive and conscientiously sought to respect it, there would be plenty of room for conflict. Problems would inevitably emerge because, although it would presumably be relatively clear that I have a right to the fish I catch in the ocean, very few of modern life's possessions are acquired in such a simple fashion. Our elaborate and sophisticated system of commerce would be impossible without an equally elaborate and sophisticated system of rules to govern property, and such a detailed set of rules is underdetermined by the vague pronouncement that each person has a moral claim to the fruit of her labor. And because people typically care passionately about who gets to keep what property (especially when both parties sincerely believe themselves to be in the right), there is every reason to suppose that these conflicts will often be intractable and not infrequently lead to violence.

Second and more obviously, even if we assume that most people are well-intentioned folks who would never purposely violate the moral rights of others, it is clearly implausible to suppose that *everyone* would be so disposed. Think of it this way: if there is already a nonnegligible number of us who regularly violate the clear rights of others despite the imposing presence of an enormous punitive system designed to apprehend and punish criminals, it seems unrealistic to assume that there would not be considerably more criminal activity if that system were dismantled. (Indeed, it does not require great imagination to appreciate this point; one need only reflect upon what has happened in virtually all cases in which natural or social causes have even temporarily disabled those authorities responsible for enforcing the criminal law.) Moreover, notice that these relatively few criminally oriented people are likely to be a corrupting influence on many of those who would otherwise be inclined to play by the rules. It is not just that borderline people will be more likely to succumb to temptation when they see others routinely getting away with taking from others (though this effect should not be minimized). The more dangerous problem is how the initial victims will react when they realize their relative impotence either to catch and

punish those who have wronged them or to ensure that they are not victimized again in the future. It does not seem unreasonable to think that these victims might be more inclined to violate the rights of others (in a misguided attempt to restore themselves to the level to which they consider themselves entitled) and to spend less time and energy on productive projects (the fruits of which are vulnerable to being stolen) and more time on defensive (if not preemptive) efforts designed to retain what is most precious. In fact, one need not have been a victim oneself to recognize the rationality of adopting this defensive strategy; anyone who comprehends the incentives of life without an effective system of criminal law can appreciate the folly of working to acquire portable goods and the wisdom of striving instead to limit one's vulnerability to others. Of course, as people generally produce fewer and fewer new goods, this will increase the temptation to steal those already in circulation, and thus interpersonal relations will continue to deteriorate as each person becomes increasingly fearful of the threat posed by others. In the end, then, it is clear that even if most of us are antecedently disinclined to mistreat others, the absence of an effective system of criminal punishment would create dangerous incentives for those few who do not respect moral rights, which in turn would set in motion a number of other, mutually reinforcing trends whose cumulative effects would be dramatic.

Third and finally, let us suppose that a victim does apprehend someone whom she is convinced has violated her rights. In the absence of a legal system, it now falls upon the victim and her allies to exact restitution and/or mete out punitive justice. And when the punishment is imposed by the victim herself rather than by an impartial third party, three types of complications are prone to arise: (1) the victim may punish an innocent person; (2) the victim may overpunish the wrongdoer; and (3) even if the victim punishes the criminal in accordance with her guilt, the criminal might sincerely believe that she has been either wrongly punished or overpunished.

Regarding (1), victims are more liable to punish innocent people whom they mistake as wrongdoers because they are doubly

biased: Not only might their affections/aversions give them a prejudiced sense of who is guilty and innocent, their personal stake in revenge would understandably lead them (however unconsciously) to reduce the burden of proof for conviction. (Whereas a legal system might be designed to ensure that ten guilty people are let go before one innocent person is wrongly convicted, it seems wildly implausible to suppose that a victim seeking personally to impose a punishment on the person she believes violated her rights would effectively operate according to anything like that directive.) Impartial judges and jurors, on the other hand, are not as personally invested in the case. Their paramount concern is simply to see that justice is served, and as a result they are much less likely to convict the innocent. Analogous reasoning applies to (2): Because the victim is so concerned to be avenged/restored, she may be inclined to demand too much compensation and/or impose too stiff a penalty. Finally, concerning (3), it is important to note that even if, as an objective matter, the criminal is not subjected to excessive punishment, she is likely genuinely to *believe* that she has been treated unfairly. This belief could emanate from any of three sources: First, it would not be surprising for a wrongdoer to incorrectly but sincerely believe that she has not violated the victim's moral rights (this is especially likely in an anarchic environment where there is no authoritative body to establish and promulgate an undisputed code of criminal law). Second, the same personal bias that often leads the victim to believe that the criminal deserves a harsher penalty would lead the wrongdoer to favor her own perspective, and thus sincerely to believe that she deserves a more lenient punishment. Third, given that the punishment meted out by the victim herself appears more personal and less authoritative, the person punished is all the more likely to regard the punishment as an excessive personal indulgence rather than as an appropriate execution of justice.

Now, (1)–(3) are all significant because each one is likely to inspire retaliation. To appreciate the importance of this point, consider how Jennifer and her friends and family would likely react if Jane imposed punishment X upon Jennifer for crime Y,

and either (1) Jennifer is in fact innocent of crime Y, (2) punishment X is excessive for crime Y, or (3) for whatever reason, Jennifer and her allies sincerely believe that punishment X is excessive for crime Y. In each case, Jennifer and her supporters would be convinced that Jane has wrongly harmed Jennifer and thus are likely to set out to exact retribution for what they regard as Jane's wrongful or excessive punishment. The problem, of course, is that Jane and her allies will not believe that the initial punishment violated Jennifer's rights, and thus they will regard any attempt to punish Jane as a mere criminal attack. As a consequence, the longer Jane's allies are able to protect her from punishment, the more Jennifer and her supporters will be likely to resort to extreme measures to exact some sort of revenge. If Jennifer and her allies are able swiftly to impose a punishment, on the other hand, then we should expect Jane and her friends and family to be especially incensed that Jennifer has (at least from Jane's perspective) now violated Jane's rights for a second time. In short, if the state were to disappear and criminal punishment were then left up to those sufficiently interested in the particular crimes to take matters into their own hands, it is hard to see how things would not soon deteriorate into a bloody mess.

To recapitulate, in the absence of a political state, one should expect three especially glaring problems to emerge. Without an authoritative legislative body to establish a definitive set of rules that everyone must follow, there will be conflicts even among well-intentioned people who genuinely seek to treat each other according to the demands of morality. Without an effective executive body to ensure that a reasonable percentage of rule breakers are caught and punished, those disinclined to respect the moral rights of others will not be sufficiently deterred and, ultimately, everyone's incentives to pursue productive projects and meaningful relationships will diminish markedly. Finally, without a standing judicial body to impartially adjudicate conflicts and assign criminal punishments, attempts to exact revenge and mete out justice will lead to increasingly bloody conflicts. Moreover, it is important to recognize that the cumulative effect of these three

factors is more than additive; these elements will combine to create a vicious cycle in which each consideration presents an aggravating factor that exacerbates the others.

It is hard to exaggerate how horrible life would be in the absence of political security, but one theorist who has been accused of doing so is Thomas Hobbes. He famously describes life without political order (often referred to as the “state of nature”) as follows:

Hereby it is manifest, that during the time men live without a common Power to keep them all in awe, they are in that condition which is called Warre; and such a warre, as is of every man, against every man. . . . Whatsoever therefore is consequent to a time of Warre, where every man is Enemy to every man; the same is consequent to the time, wherein men live without other security, than what their own strength, and their own invention shall furnish them withall. In such condition, there is no place for Industry; because the fruit thereof is uncertain: and consequently no Culture of the Earth; no Navigation, nor use of the commodities that may be imported by Sea; no commodious Building; no Instruments of moving, and removing such things as require much force; no Knowledge of the face of the Earth; no account of Time; no Arts; no Letters; no Society; and which is worst of all, continuall feare, and danger of violent death; And the life of man, solitary, poore, nasty, brutish, and short.⁵

Certainly there is reason to quibble with various details of Hobbes’s description of the state of nature as well as his elaborate argument in support of that description, but it strikes me as difficult to deny the general picture. Put plainly, for the vast majority of us, life without political order would be a horribly perilous environment.

Part of the explanation for why I am not an anarchist, then, is that states perform incredibly important legislative, executive, and judicial functions. Given that states are nonconsensually coercive, however, it is not enough to point out that states perform these beneficial functions. Clearly, we would prefer to have these

5 Thomas Hobbes, *Leviathan*, Part I, Chapter 13, paragraphs 8 and 9.

functions performed via some noncoercive means, so an adequate defense of statism must also demonstrate that these benefits could not be secured in the absence of political order. It is here that anarchists often press their case, arguing that statist are too quick to conclude that life would necessarily be unbearable in the absence of political order. One might think that life in the state of nature would be fine if one had a great deal of confidence in human nature or the motivational force of morality, but one need not have such utopian inclinations to be an anarchist. More often, anarchists challenge the necessity of states in one of two standard ways: Some insist that political coercion is not necessary in close-knit communities, and others maintain that states are never necessary because private companies could perform the functions in question. Consider each of these views in turn.

The Anarchist's Rejoinder

Anarchists who emphasize the strength of communities argue that the three types of problems I have outlined might very well arise in many cases, but they would be unlikely to occur in healthy communities, especially small-scale, close-knit groups in which virtually everyone personally knows everyone else. The central idea here is that when the bonds between individuals are sufficiently robust, we need not fear the chaos about which statist warn us because (1) the community would have the resources both to establish and to educate all of its members about a workable set of rules; (2) the fellow feeling among community members would make people disinclined to mistreat one another; and, (3) because everyone would identify so closely with everyone else and the community as a whole, group members would not only happily protect each other's rights, they would work together to apprehend and punish anyone who flouted the community's rules.

Although I find this optimistic view of communal life attractive, I am skeptical that contemporary communities could function in anything like this fashion, except in the most rare and abnormal circumstances. In particular, while many anarchists of this persuasion suggest that contemporary communities would undoubtedly

be more robust were it not for the corrupting influence of the modern bureaucratic state, I suspect that the opposite is true. My own view is that many contemporary communities are able to flourish to the extent that they do only because they are sheltered by stable political states that not only buttress the communities' norms (by threatening to punish those community members who violate the rights of others) but also deter outsiders from wrongly interfering with the community's self-determination. As a consequence, I question whether the communal prescription for peace and stability is one that could even in theory be widely effective today.

It is important to notice, though, that even if states have historically played a prominent causal role in the destruction of communal bonds, this would not be enough to vindicate the view in question. This form of anarchism would still be implausible because – whatever is to blame for our current lack of communal ties – the undeniable fact is that virtually all of us not only do not live in sufficiently close-knit communities, we lack the means to cultivate such communities in the foreseeable future. This point is decisive, of course, because it implies that – however different things might have been if history had unfolded according to an alternative script – the vast majority of us do not have the communal resources to restore the order that would be disrupted in the absence of the state's coercive presence, and thus we would in fact be imperiled if our states were to go out of existence. In short, even if communal anarchists are right to be optimistic about the benefits communities might have been able to supply had history unfolded differently, this counterfactual claim gives us no reason to doubt that states are necessary in this actual world.

An alternative defense of anarchism concedes that we need institutions to protect us from perilous vulnerability, but it denies that we need the nonconsensual institutions of a state. According to this view, any function that a government might perform a private company could perform better. Thus, there is no reason that one could not hire a protective company to protect one's moral rights better and/or less expensively than states currently do. As a consequence, even though states undeniably supply precious

Rules
need
consent

benefits, these same benefits could be supplied in their absence and, therefore, there is no justification for the nonconsensual coercion that invariably attends political states.

I have a great deal of sympathy for this approach because I believe that modern states have indeed ballooned to unjustifiable proportions. In my view, too many of us naively presume that states would not interfere where they do not belong, when in fact states have demonstrated a lamentable tendency to insert themselves into all types of matters where their presence is not only unnecessary but positively harmful. However, despite my conviction that we must guard against states wrongly assigning themselves additional responsibilities, I remain a statist because I continue to believe that no other type of institution could solve the legislative, executive, and judicial problems enumerated previously. States are necessary because hazardous chaos would unavoidably result unless all those in spatial proximity play by the same rules, and there is no way to get everyone to accede to the same set of rules in the absence of a territorially defined state. In other words, I do not think it is a mere accident that states are defined territorially; on the contrary, the class of people any given state coerces must be delineated geographically (as opposed to by, say, religion or eye color) because governments could not perform their requisite functions unless they uniformly coerced everyone within their territorial boundaries. This is because the legislative, executive, and judicial problems outlined previously would prevail as long as people in close proximity did not defer to a single authority and a definitive set of rules. And since people with various eye colors and differing religions live among one another, it would not be feasible to politically sort subjects according to either of these (or any other nonterritorial) criteria. This observation helps us see why private companies are necessarily ill equipped to secure a lasting and just peace. The great appeal of private protection agencies is that, by serving only those clients who freely sign up, they promise to supply the crucial benefits without any nonconsensual coercion. This solution's chief virtue leads to its ultimate downfall, however, because no genuinely voluntary arrangement would garner universal subscription, and

thus none would avoid the violent division we seek to avoid. Let me explain.

For a variety of reasons, no private protection agency would win everyone's business. First, a number of individuals would not hire any company simply because they cannot afford to pay for the service. (And, in the absence of a state to pool resources and provide a guaranteed social safety net, there is no telling how large this group might be.) Some among those who could afford the service would prefer to hire no company for the same reason that they eschew the government – they are rugged individualists who would rather take their chances on their own. **More importantly, however, we should expect those who would hire a protective agency to spread themselves out among a number of competing firms. Such division is inevitable because, in the absence of a state to impose a monopolistic supplier, we must assume that individuals would be drawn to a variety of private companies, all of which would compete zealously for customers and the substantial profits at stake.**

Given the presence of competing private protection agencies, it takes little imagination to see how peace and stability would be undermined. The central problem, of course, is that each agency would be concerned first and foremost with maximizing profits, and, as such, its prime objective would be to acquire and retain clients. This desire to attract customers would lead firms to concern themselves principally with marketing and client representation, and thus Jane's firm and Jennifer's agency would be liable to conflict in the same ways (and for analogous reasons) that Jane and Jennifer as individuals would have. That is, if one of Jane's moral rights is violated, then the company Jane has hired to protect her from harm would have a financial interest in apprehending and exacting restitution from the wrongdoer. (Or, more accurately, Jane's protective agency would have a financial interest in apprehending someone whom *Jane will be convinced* is the wrongdoer and exacting *what Jane believes* is just restitution.) In other words, Jane's company (like Jane herself) is emphatically *not* an unbiased third party merely working to see that justice is done; it is an interested party, and, as such, it is prone to

punish the innocent and overpunish the guilty. Moreover, just as Jennifer was liable incorrectly to see herself as either wrongly punished or overpunished by Jane, Jennifer is apt to see herself as either wrongly punished or overpunished by the company Jane has hired to secure her moral rights. Thus, once Jennifer has been punished, she may very well complain to her own company that her rights have been violated. What is more, the ensuing conflict between Jennifer's company and Jane's agency would be just as intractable as the analogous conflict between Jennifer and Jane would have been because the goal of the employees in Jane's (Jennifer's) agency would not be to secure what is in fact just; it would be to retain Jane's (Jennifer's) business, which they could reasonably expect to do only if they secured what Jane (Jennifer) *believes* is just. Thus, the introduction of private agencies could not eliminate the conflicts that we should expect to arise in the state of nature (and in many ways it may magnify them since these conflicts would occur between larger, more potent groups) because as long as people have a genuinely free choice as to which (if any) agency to hire, there will still be no single party with the authority to definitively establish a common set of rules, to effectively and uniformly enforce these rules, and to impartially adjudicate potential conflicts under these rules. The only way to ensure that everyone will in fact defer to such an ultimate authority is if this authority imposes itself with irresistible force upon everyone within the territorial limits.

If the preceding account is correct, then it is no longer so difficult to distinguish between political coercion and slavery: Both resort to nonconsensual coercion to generate benefits, but only governments produce crucial benefits that could not be supplied in their absence. In light of this morally relevant difference, clearly there is nothing logically inconsistent or otherwise hypocritical about being a statist, on the one hand, and condemning slavery, on the other. However, while noting the nature of the benefits available only in political society points to the logical space for a defense of political coercion, it is not on its own enough to supply this defense. In my view, political coercion is in fact justified only if, unlike slavery, it does not impose unreasonable costs upon

those nonconsensually coerced. In other words, if the imposition of a political state were as burdensome to its subjects as slavery typically is to those enslaved, then political coercion would presumably not be justified even if it were necessary to rescue us from the perils of the state of nature. As I will now explain, however, states can be legitimate as long as they perform their requisite functions without imposing too great a burden upon their subjects.

Samaritanism and Voluntarism

To begin, let me acknowledge that modern states demand considerable sacrifices from their subjects. As I emphasized in my initial comparison between slavery and political coercion, **states not only coerce their subjects in myriad ways, they tax these subjects in order to amass the force necessary to make their coercion practically irresistible.** In other words, states impose a substantial secondary cost (taxes) in order to secure their ability to impose their primary coercion (the creation, enforcement, and adjudication of laws). But even though these primary and secondary costs are unquestionably substantial, the *net* costs of citizenship are not unreasonably great because these net costs consist of these admittedly considerable initial costs *minus* the even greater benefits of political stability.

I **say that the benefits of citizenship are greater than the costs because what each of us gains from everyone else's compliance with the state's laws is much more valuable than what we lose by having to obey these laws ourselves.** Certainly we would prefer to retain the discretion to act in accordance with our own personal interpretation of what morality requires (and obviously we would rather not pay our taxes), but the cumulative result of everyone enjoying this discretion is the perilous environment explained earlier. Thus, by producing benefits that far outweigh its costs, it is as if the state forced each of its constituents to give up a hundred dollar bill but in return gave back ten twenties.

Presumably it is obvious to most that these benefits far outweigh the admittedly considerable costs, but if you are not yet

convinced, consider the following thought experiment. Imagine that a supremely powerful government official approached you with an extraordinary offer: If you are content to continue obeying the law and paying your taxes, then she will keep your current state in place as is; if you would rather be freed from your state's imposition, on the other hand, then she will entirely disband your current state. How would you choose? I concede that there may be some exceptionally optimistic and/or self-reliant people who would genuinely choose for the state to be disbanded, but I have little doubt that virtually every informed person would choose to continue obeying the laws and paying her taxes. As much as we might resent the burdens of citizenship, I suspect that almost all of us would admit that the benefits of political society far outweigh the costs.

Let me stress, however, that I highlight the profound benefits of living in political society only to support my assertion that the net costs of citizenship are not unreasonably onerous; I am emphatically *not* suggesting that states are justified in coercing their constituents because this coercion ultimately benefits each of them.⁶ I reject this latter approach for two reasons. First, as I have acknowledged throughout, there may be a few subjects (robust individualists, for instance, who place an extraordinary premium on self-reliance) who very well might be better off in a state of nature. And, if so, then a straightforward appeal to the benefits for each citizen would not suffice to justify the state's coercion of everyone. Second and more important, I object to the paternalism implicit in any account that justifies nonconsensual coercion in terms of potential benefits to the coerced. In my view, each competent adult enjoys a privileged position of moral dominion over her own self-regarding affairs, and this dominion entails that each of us must be allowed to choose which benefits

6 For this reason it would be wrong to think, as some critics have suggested, that my reference to the profound benefits of political society necessarily renders my account paternalistic. See, for example, George Klosko, "Samaritanism and Political Obligation: A Response to Christopher Wellman's 'Liberal Theory of Political Obligation'," *Ethics* 113 (2003): 835–40.

to pursue. As a result, **one may not permissibly coerce another, even if one knows that doing so will benefit the coercee.** As I mentioned earlier, just as my investment broker may not put a gun to my head and insist that I invest my money in a particular beneficial fashion, my state cannot justify its coercion of me in terms of how this coercion benefits me.

The preceding does not render the benefits of political society beside the point, however; these crucial benefits remain relevant because they substantiate my claim that political coercion is not unreasonably costly. This is important because I want to insist that a state is justified in nonconsensually coercing *me* (even if I am not benefited and/or would genuinely prefer to take my chances in the state of nature) because the state's uniform coercion over all those within its territorial borders is the only way for it rescue *any of us* from the perils of the state of nature. My account of political legitimacy is nonpaternalistic, then, because it insists that my state may justifiably coerce *me* only because this coercion is a necessary and not unreasonably burdensome means of securing crucial benefits for *others*. To emphasize: According to the defense of statism I advocate here, my state is ultimately permitted to coerce me only because this coercion is both (1) necessary to secure vitally important benefits for my compatriots and (2) not unreasonably costly to myself. Thus, I openly concede that political coercion is doubly like slavery insofar as the coercion is both nonconsensual and – at least in part – designed to benefit others. I insist that political states can nonetheless be justified, however, because the beneficial functions they perform are essential to living a minimally rewarding life, and states can perform these functions without imposing excessive costs on their citizens. In short, although political coercion admittedly shares crucial features with slavery, it is importantly distinct not only because slavery is not necessary to provide others with vitally important benefits, but also because slavery imposes unacceptable costs upon those enslaved.

At this point, a critic might object that I have succeeded only in showing that political coercion is a milder type of slavery. My arguments may demonstrate that political coercion is less objectionable than the more traditional chattel slavery, but that it remains

impermissible precisely because of the moral dominion I have just cited to explain the wrongness of paternalism. In other words, one might protest that even if it is true that others would be horribly imperiled unless I were coerced, this does not license coercing me without my permission as long as I am not personally responsible for their impending peril. This objection depends upon a particularly austere form of voluntarism, and while I acknowledge that some voluntarist accounts of morality can be attractive, no plausible version of voluntarism would exclude the moral premises necessary for the defense of statism offered here.

In its most extreme form, voluntarism is the view that one is morally bound in no ways that one has not voluntarily accepted. Virtually no one endorses voluntarism in this unqualified guise, however, because it has obviously unpalatable implications, such as that Albert does no wrong in killing Bob unless Albert has voluntarily agreed not to do so. A less severe voluntarism that applies only to our positive obligations is more popular, however.⁷ According to this modified view, each of us has a natural (i.e., nonvoluntary) duty not to harm others, but no one can have a positive duty to benefit others unless she has voluntarily accepted this duty. The idea motivating this theory is the intuitively compelling notion that each of us should be free to be the authors of our own lives, and this freedom entails that others cannot unilaterally foist (positive) moral obligations upon us. Or (put in terms of the moral dominion I invoked previously), each of us enjoys a privileged position of moral dominion over her self-regarding affairs, and since any behavior that does not wrongly harm others is self-regarding, we are entitled to be free from coercion as long as we are not wrongly harming others.

Although this second, more limited version of voluntarism comes much closer to the truth, it remains too ambitious. In particular, it is implausible to insist that we occupy a position of absolute moral dominion over our self-regarding affairs *no matter*

7 "Positive" duties require us to assist others; they are to be contrasted with "negative" duties, which require merely that we not harm or interfere with others.

how dire the circumstances of others may be. Surely there are extreme circumstances in which it would be permissible to encroach upon what would ordinarily be a person's position of moral dominion. *Imagine, for instance, that Amy has a seizure, desperately needs medical attention, and can be saved only if Beth immediately commandeers Cathy's car and drives Amy to the nearest hospital.* Would it be permissible for Beth to take Cathy's car, or would it be wrong even in these extreme circumstances for Beth to use Cathy's property without the latter's permission? Most would agree that Beth may permissibly take Cathy's car. Certainly Beth should return it as promptly as possible (and perhaps Beth or Amy should offer Cathy some type of compensation for having taken Cathy's property without her permission), but it strikes me that the extreme circumstances justify Beth's acting in a manner that ordinarily would be impermissible. That is, whereas Cathy's property right in her car would ordinarily make Beth's action impermissible, the fact that Amy's life hangs in the balance gives Beth's mission an urgency that outweighs Cathy's normally decisive dominion over her self-regarding affairs.

Returning to voluntarism, it is important to notice that even the modified version of voluntarism we are now considering would *not* permit Beth to take Cathy's car because, given that Cathy was in no way responsible for Amy's seizure, Cathy would continue to enjoy an absolute position of dominion over her car. In light of this, clearly voluntarism must be further qualified so as to leave room for our dominion to be permissibly encroached on in sufficiently dire circumstances. Such an amendment does not constitute abandoning voluntarism; it merely involves recognizing that voluntarism applies to an extensive but duly limited sphere. Indeed, John Simmons, one of the most impressive and prominent defenders of *political* voluntarism, would apparently have no qualms with such a move. As he puts it: "just as obligations sometimes ought not to be discharged, so rights may sometimes be legitimately infringed. I do not act wrongly in taking your car without permission (and so violating your property rights) or failing to deliver the product I sold you (violating your contractual rights), if these acts and omissions are necessary to save someone from great

thought
experiment.

and unmerited harm. Our rights may sometimes be infringed in the performance of important duties or to prevent extremely unhappy occurrences.”⁸ Thus, while some might argue that voluntarism requires further qualification, clearly voluntarists must at least acknowledge that one’s privileged position of dominion allows one neither to wrongly harm others nor to fail to benefit others when they are sufficiently imperiled and one can help them at no unreasonable cost to oneself. Once voluntarism has been qualified to this minimal extent, however, it is entirely compatible with the account of political legitimacy I have outlined.

This less austere version of voluntarism leaves ample room for statism because a state’s nonconsensual coercion of its citizens is morally analogous to Beth’s nonconsensual borrowing of Cathy’s car insofar as each is necessary “to prevent extremely unhappy occurrences.” Just as it would ordinarily be impermissible for Beth to take Cathy’s car without the latter’s permission, it is typically unjustified to nonconsensually coerce someone. Just as Beth’s unauthorized use of Cathy’s car is made permissible only because this course of action is the only way to rescue Amy from her extreme peril, a state’s coercion of its constituents is justified only because this imposition is the only way to rescue any of them from the perilous chaos that would otherwise prevail. Just as Beth would not be permitted to take a course of action dramatically more costly to Cathy (like chopping off one of Cathy’s arms) *even if this were the only way to save Amy’s life*, the state would not be justified in coercing its citizens if this coercion were unreasonably costly (as it would be if the costs of citizenship – like slavery – were dramatically more substantial than the benefits) *even if this were*

8 A. John Simmons, *Justification and Legitimacy* (Cambridge: Cambridge University Press, 2001), 60–1. It is important to note that, although Simmons is a celebrated advocate of *political* voluntarism, he has never defended *moral* voluntarism in any of the guises I am considering here. It is therefore open to him to grant my qualifications of moral voluntarism and yet continue to defend an unqualified version of political voluntarism. Such a position might strike some as awkward, however. At the very least, a political voluntarist who granted the existence of nonvoluntary (positive) moral duties would seem to owe us an explanation for why no *political* duty could be nonvoluntary. As far as I know, Simmons has not yet offered such an explanation.

the only way to rescue everyone from the state of nature. In sum, just as Beth's nonconsensual taking of Cathy's car is permissible only because this course of action is both (1) necessary to save Amy and (2) not an unreasonable imposition upon Cathy, a legitimate state's nonconsensual coercion of all those within its territorial limits is justified only because it is both (1) necessary to save everyone in that territory from the perils of a lawless environment and (2) not an unreasonable imposition upon those coerced.

Before moving on, it is worth explicitly acknowledging each of the various assumptions required for my defense of statism. The twin descriptive premises, of course, are simply that (1) states secure vital benefits that (2) could not be secured by any other, non-coercive means. It is important to notice, however, that there is a third premise implicit in my claim that states can perform these functions without imposing any *unreasonable* burdens upon their constituents. Insofar as the plausibility of this claim depends in part upon the great benefits of political society, this premise might appear wholly descriptive, but it also contains a moral claim. It includes an ineliminably moral element because it asserts that, given the costs and benefits of political coercion, no constituent may righteously object to this coercion, and, as such, it involves the moral claim that one's normally decisive position of moral dominion can be overridden by particularly urgent, and therefore morally preemptory, concerns.

I have said a good bit in defense of the twin descriptive premises presented previously, so let me briefly suggest why this moral premise – which I call “samaritanism” – is merely a standard component of commonsense morality. First, notice that legal institutions typically allow a “necessity” defense for those who break a law in order prevent some more dire consequence. Beth would likely not be criminally punished for exceeding the legal speed limit en route to the hospital, for instance, as long as she could establish that she did so only to save Amy's life. Moreover, it is important to appreciate that the legal defense of necessity was created in order to accommodate our ordinary moral thinking on these matters. Voluntarists are certainly right to insist that we must largely be left free to determine the moral content of our

own lives, but one can accept the moral significance of samaritanism without unduly undermining this voluntarist vision. To invoke a standard example, for instance, notice that virtually no one would insist that a lounge by a pool has no duty to save a drowning child from the pool unless she has freely agreed to do so. On the contrary, ordinary moral thinking dictates that our legitimate interest in pursuing our own self-regarding projects is outweighed in this instance by the twin facts that someone else is in dire need and that one can rescue her at minimal cost to oneself. Thus, this duty to perform easy rescues in particular, and samaritanism in general, clearly involves a moral claim, but it is a commonly accepted and entirely defensible one.

Having acknowledged my moral premise of samaritanism, I am now in a position to complete my defense of statism. I am not an anarchist, even though I recognize that political coercion bears a striking resemblance to slavery, because political states are the only thing capable of rescuing us from the state of nature, and they are able to perform the functions that rescue us from this peril without imposing unacceptable costs upon anyone. If I became convinced that (1) states did not perform these vitally important functions, (2) the crucial benefits could be secured by some other, less coercive means, or (3) political coercion was unreasonably costly, then I would indeed be an anarchist. To conclude in terms of the bumper sticker mentioned at the beginning of this chapter, I am ultimately a statist because I believe there are straightforward and morally relevant grounds on which to distinguish between political coercion and slavery.

Before concluding this chapter, I should acknowledge that a critic might invoke the distinction between *political* and *philosophical* anarchism and argue that my arguments at most undermine the former. John Horton explains the distinction between these two versions of anarchism:

Political anarchists are more inclined to view the state as an evil institution which must be destroyed if human beings are to flourish. On their view, not merely do people have no political obligation to their state, they should actively oppose its existence. Philosophical anarchists on the other hand, while

denying that states have any distinctive moral authority, do not necessarily conclude from this that the state should be abolished. The political implications of philosophical anarchism are much more open-ended. In short, political anarchists are principally exercised by the practical effects of the state, especially its allegedly socially destructive consequences, while philosophical anarchists are more narrowly identified by their denying to the state any claim to moral authority.⁹

As things stand, this objection is right on target: I have yet to say anything about a citizen's duty to obey the laws of her state, so even if the preceding defense of statism is thoroughly convincing, it defeats only political anarchism, not philosophical anarchism. My case against philosophical anarchism will not be complete until the next chapter, when I draw upon my defense of statism to develop a samaritan account of our duty to obey the law. Before closing this chapter, however, I would like briefly to suggest why there are reasons to suspect that one cannot be a philosophical anarchist without also being a political anarchist. If so, then philosophical anarchism will have much more radical implications than its adherents typically acknowledge.

Aware that political anarchism is so controversial, philosophical anarchists often take great pains to distance their position from the extreme view that we should all join in the fight to dismantle existing governments. John Simmons, the most sophisticated and celebrated philosophical anarchist, puts it as follows:

What is distinctive about philosophical anarchism is that its judgment of state illegitimacy . . . does not translate into any immediate requirement of opposition to illegitimate states. This is what leads many to contrast philosophical anarchism to political anarchism.

Philosophical anarchists hold that there may be good reasons not to oppose or disrupt at least some kinds of illegitimate states, reasons that outweigh any right or obligation of opposition. The practical stance with respect to the state, the philosophical anarchist maintains, should be one of careful consideration and

9 John Horton, *Political Obligation* (Atlantic Highlands, NJ: Humanities Press, 1992), 114.

thoughtful weighing of all of the reasons that bear on action in a particular set of political circumstances. The illegitimacy of a state (and the absence of binding political obligations that it entails) is just one moral factor among many bearing on how persons in that state should (or are permitted to) act. Even illegitimate states, for instance, may have virtues, unaffected by the defects that undermine their legitimacy, that are relevant considerations in determining how we ought to act with respect to those states, and the refusal to do what the law requires is, at least in most (even illegitimate) states, often wrong on independent moral grounds (i.e., the conduct would be wrong even were it not legally forbidden). So there may be a variety of sound moral reasons not to oppose or not to act contrary to the laws of even some illegitimate states.¹⁰

As a strictly logical matter, these philosophical anarchists are undoubtedly correct: There is logical space to affirm a state's moral liberty right to coerce its constituents and to deny its moral claim right to obedience.¹¹ In other words, it might be that political subjects have no moral duty to obey the commands of their state *even though the state has a moral right to nonconsensually impose itself upon all those within its territory*. As a practical matter, however, I think it is very difficult simultaneously to endorse philosophical anarchism without also committing oneself to political anarchism. Let me quickly explain the source of this difficulty, first in terms of Simmons's work and then in terms of the more general analogy between slavery and taxation with which this chapter began.

In defending philosophical anarchism, Simmons often compares political states to private companies in order to illustrate that, even if a particular state is internally just, is marvelously efficient, and/or does any number of good deeds, these facts do not in themselves obligate us to support it any more than we would be obligated to support any given company that happens to be

¹⁰ Simmons, *Justification and Legitimacy*, 109.

¹¹ I should stress that Simmons has never, to my knowledge, sought to defend a state's general liberty right to coerce its constituents. At most, he has claimed that states may be *in particular cases* morally justified in coercing, as may anyone. As I will argue, it is the generally coercive nature of states that should be worrisome to a political voluntarist like Simmons.

just, efficient, or charitably engaged in good acts. As Simmons puts it: "The fact that a state or a business has virtues appropriate to it cannot, by itself, argue for its having special rights over me or for my owing it special obligations, nor, of course, do these special rights and obligations, where they exist, necessarily over-ride moral duties to oppose a vicious state. Only if the state also has special relations to me will special rights or obligations of that sort follow."¹² The conclusion to which Simmons invites us is that a state is just like a company, and, as a result, while there may be times when we have moral reasons to support a state in its production of benefits, there is no general obligation to obey all of its legal commands. I fear that this analogy between a state and a company may be misleading, however, because unlike a typical company, states depend for their existence upon nonconsensually coercing all those living within their territorial borders. And since Simmons's political voluntarism should lead him to regard such coercion as unjustified, presumably he should think that everyone has moral reasons to resist the state in order to free others from this nonvoluntary coercion (just as we would have reason to resist a company that nonconsensually coerced its "clients"). Certainly Simmons would be right to protest that his view does not commit him to the position that we have an *absolute* duty to *always* resist the state (as he puts it, "The practical stance with respect to the state . . . should be one of careful consideration and thoughtful weighing of all the reasons that bear on action in a particular set of political circumstances"¹³), but any thoughtful political anarchist would agree with this. The crucial point is that if a state is nonconsensually coercive despite having no special rights over us, then it seems appropriate to conclude that, other things being equal, we have moral reasons to actively resist the state. And this last conclusion, of course, is *political* – not merely *philosophical* – anarchism. In short, Simmons's view may be more radical than he admits because his defense of philosophical anarchism appears to lead not only to the claim that we have no

12 Simmons, *Justification and Legitimacy*, p. 112.

13 Ibid., 109.

general obligation to support the state but also to the conclusion that we should all work to overthrow the state.

To appreciate that this difficulty does not arise merely from Simmons's analogy between political states and private companies, notice that it can equally well be explained in terms of the comparison between taxation and slavery with which this chapter began. Bumper stickers that proclaim "Taxation is slavery!" are motivationally efficacious because everyone appreciates that if political coercion were really morally tantamount to slavery, then we would be no more obligated to obey the laws of our state than a slave would be morally bound to obey her master's commands. (And this, of course, is precisely why I went to such lengths to distinguish between the two.) But notice: If my arguments to this point have been inadequate and political coercion were really analogous to slavery, then it would not merely follow that we have no obligation to obey the law; in addition, we should conclude that, just as we all would have moral reasons to work to eliminate the injustice of slavery, each of us ought to take to the streets to end the oppression of political coercion. Think of it in these terms: When it comes to slavery, it would be highly implausible to adopt a stance of "philosophical abolitionism," insisting that slaves have no moral obligation to obey their masters but denying that slavery is necessarily impermissible. No one would endorse such a muted form of abolitionism because the same feature of slavery that explains why slaves are not obligated to obey their masters (i.e., nonconsensual coercion) equally explains why it is impermissible to enslave others. Thus, it seems at the very least awkward to support the analogous position regarding political states – philosophical anarchism – which insists that citizens have no moral obligation to obey the law but denies that there is anything morally problematic about imposing this law in the first place.

To reiterate what might be dubbed the "bricks and bottles" objection: As much as philosophical anarchists might strive to divorce themselves from the awkward position that we should be in the streets throwing bricks and bottles in an attempt to overthrow the state, there is reason to suspect that any argument

that calls into question our duty to obey the law can equally be applied, *mutatis mutandis*, to the state's right to exist. If so, then philosophical anarchists bear more of an argumentative burden than they typically let on. Not only must they demonstrate why no existing explanation of our duty to obey the law suffices, it is incumbent upon them to show why their arguments do not also lead to the less palatable conclusion that we should take to the streets to dismantle all existing states.

